

Ethics and Professional Conduct for the Surveyor

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Professional Conduct is driven
by a number of factors
including
Ethics

*Ethics are defined as:

The Science of Morals,
Moral Principles or Code

* Oxford English Dictionary

“Moral”

Defined as the standard of
conduct respected by good men
independently of positive law
and religion.

Many have attempted to define ethics in their own context whether business, organizational, political, personal or professional. Each can vary.

Today,
we are going to
talk about
Professional Conduct
based on
Professional Ethics.

A good definition of
professional ethics is:
“Giving of one’s best to ensure
that clients’ interests are
properly cared for, but in doing
so the wider public interest is
also recognized and respected.”

- Howard Land FRICS

There are five basic
assumptions that
underpin the
understanding of
conduct and ethics
for professionals

Professional Ethics is a Process

Ethics are not a fixed text to be learned once.

Ethics are a way of reviewing behavior
against constantly changing standards.

What may be ethical today, or in a particular
society, may be viewed differently by others
or at another time.

Human Behavior is Caused

There is a motive for all human behavior, e.g., financial gain, power, compassion.

Actions Have Consequences

The equivalent of Newton's
Third Law of Physics –

”Every force has an equal and
opposite reaction.”

What is Ethical Depends on the Individual's Point of View

This is influenced by a variety of factors including published codes and statements.

Good Ethical Practice Rests on Mutual Vulnerability

We are each susceptible to the actions of others, and the way we are treated depends on how we treat others. Respect is not a right. It must be earned.

Core Values of Professional Conduct and Professional Ethics

Act Honorably

Never put your own gain above the welfare of your clients or others to whom you have a professional responsibility. Always consider the wider interests of society in your judgments.

Act With Integrity

Be trustworthy in all that you do-never deliberately mislead, whether by withholding or distorting information.

Be Open and Transparent in Your Dealings

Share the full facts with your clients,
making things as plain and intelligible
as possible.

Be Accountable for Your Actions

Take full responsibility for your actions
and don't blame others if things go
wrong.

Know and Act Within Your Limitations

Be aware of the limits of your competence and don't be tempted to work beyond these. Never commit to more than you can deliver.

Be Objective At All Times

Give clear and appropriate advice. Never let sentiments or your own interests cloud your judgment.

Always Treat Others With Respect

Never discriminate against others.

Set A Good Example

Remember that both your public and private behavior could affect your own, and other surveyor's reputations.

Have the Courage to Make a Stand

Be prepared to act if you suspect a risk to safety or malpractice of any sort.

Comply With Relevant Laws and Regulations

Avoid any action, illegal or litigious, that may bring the profession into disrepute.

Avoid Conflicts of Interest

Declare any potential conflicts of interest, personal or professional, to all relevant parties.

Respect Confidentiality

Maintain the confidentiality of your clients' affairs. Never divulge information to others unless it is necessary.

Code of Wisconsin Professional Conduct

Chapter A–E 8

A-E 8.02 Intent

The intent of the examining board in adopting this chapter is to establish rules of professional conduct for the professions of architecture, landscape architecture, professional engineering, designing and land surveying. A violation of any standard specified in this chapter may result in disciplinary action under ss. 443.11 to 443.13, Stats.

A-E 8.04 Offers to perform services shall be truthful.

When offering to perform professional services, an architect, landscape architect, professional engineer, designer or land surveyor:

A-E 8.04 (cont.)

(1) Shall accurately and truthfully represent to a prospective client or employer the capabilities and qualifications which the registrant has to perform the services to be rendered.

(2) Shall represent the costs and completion times of a proposed project to a client or prospective client as accurately and truthfully as is reasonably possible.

A-E 8.04 (cont.)

(3) May not offer to perform, nor perform, services which the registrant is not qualified to perform by education or experience without retaining the services of another who is qualified.

(4) May not use advertising or publicity which is fraudulent or deceptive.

A-E 8.04 (cont.)

(5) May not represent that he or she is engaged in a partnership or association with another unless there exists in fact a partnership or association.

(6) May not collect a fee for recommending the services of another unless written notice is first given to all parties concerned.

A-E 8.04 (cont.)

(7) May not practice under a firm name that misrepresents the identity of those practicing in the firm or misrepresents the type of services which the individuals, firm or partnership is authorized and qualified to perform.

A-E 8.05 Conflicts of Interest

(1) An architect, landscape architect, professional engineer, designer or land surveyor:

(a) Shall avoid conflicts of interest. If an unavoidable conflict of interest arises, the registrant shall immediately inform the client or employer of all the circumstances which may interfere with or impair the registrant's obligation to provide professional services. Under these circumstances a registrant may not proceed to provide professional services without the full approval and consent of the client or employer.

A-E 8.05 (cont.)

(b) Shall notify the employer or client and withdraw from employment at any time if it becomes apparent that it is not possible to faithfully discharge the responsibilities and duties owed to the client or employer.

(c) May not agree to perform professional services for a client or employer if the registrant has a significant financial or other interest which would impair or interfere with the registrant's responsibility to faithfully discharge professional services on behalf of the client or employer.

A-E 8.05 (cont.)

(d) May not accept payment from any party other than a client or employer for a particular project or may not have any direct or indirect financial interest in a service or phase of a service to be provided as part of a project unless the employer or client approves.

(e) May not solicit or accept anything of value from material or equipment suppliers in return for specifying or endorsing a product.

A–E 8.05 (cont.)

(f) May not violate the confidences of a client or employer, except as otherwise required by rules in this chapter.

(g) May not perform services for a client or employer while a full-time employee of another employer without notifying all parties concerned.

A-E 8.05 (cont.)

(2) Nothing in these rules limits a registrant's professional responsibility to an owner of a project when the registrant is employed by a person or firm under contract to construct and furnish design services for that project.

A–E 8.06 Professional Obligations

An architect, landscape architect, professional engineer, designer or land surveyor:

(1) Shall use reasonable care and competence in providing professional services.

A-E 8.06 (cont.)

(2) May not evade the professional or contractual responsibility which the registrant has to a client or employer.

(3) May not enter into an agreement which provides that a person not legally and actually qualified to perform professional services has control over the registrant's judgment as related to public health, safety or welfare.

A-E 8.07 Unauthorized Practice

An architect, landscape architect, professional engineer, designer, or land surveyor:

(1) Shall assist in enforcing laws which prohibit the unlicensed practice of architecture, landscape architecture, professional engineering, designing, and land surveying by reporting violations to the board.

A-E 8.07 (cont.)

(2) May not delegate professional responsibility to unlicensed persons and may not otherwise aid or abet the unlicensed practice of architecture, landscape architecture, professional engineering, designing, or land surveying.

A–E 8.08 Maintenance of Professional Standards

An architect, landscape architect, professional engineer, designer or land surveyor:

(1) Shall furnish the board with information indicating that any person or firm has violated provisions in ch. 443, Stats., rules in this chapter or other legal standards applicable to the profession.

A-E 8.08 (cont.)

(2) May not discuss with any individual board member any disciplinary matter under investigation or in hearing.

(3) Shall respond in a timely manner to a request by the board, a section of the board or the department for information in conjunction with an investigation of a complaint filed against a registrant. There is a rebuttable presumption that a registrant who takes longer than 30 days to respond to a request for information has not acted in a timely manner.

A-E 8.08 (cont.)

(4) Shall notify the department in writing if the registrant has been disciplined for unprofessional conduct in other states where the registrant holds a credential or has violated federal or state laws, local ordinances or administrative rules, not otherwise reportable under s. SPS 4.09 (2), which are related to the practice of an architect, landscape architect, professional engineer, designer or land surveyor. The notification shall be submitted within 48 hours of the disciplinary finding or violation of law and shall include copies of the findings, judgments and orders so that the department may determine whether the circumstances are substantially related to the practice of the registrant.

A–E 8.09 Adherence to Statutes and Rules

An architect, landscape architect, professional engineer, designer or land surveyor:

(1) Shall comply with the requirements in ch. 443, Stats., rules in this chapter and all other federal, state and local codes which relate to the practice of architecture, landscape architecture, professional engineering, designing and land surveying.

(2) May not engage in conduct that may adversely affect his or her fitness to practice architecture, landscape architecture, professional engineering, designing or land surveying.

A–E 8.10 Plan Stamping

(1) No architect, landscape architect, professional engineer or designer may sign, seal or stamp any plans, drawings, documents, specifications or reports for architectural, landscape architectural, professional engineering or design practice which are not prepared by the registrant or under his or her personal direction and control.

A–E 8.10 (cont.)

(2) No land surveyor may sign, seal or stamp any maps, plats, charts, or reports for land surveying practice which are not prepared by the land surveyor or under his or her personal direction and control.

(3) No architect, landscape architect, professional engineer, designer or land surveyor shall allow work performed by him or her or under his or her personal direction and control to be signed, sealed or stamped by another except that an architect, landscape architect, professional engineer, designer or land surveyor working under the personal direction and control of another registrant may allow that registrant to sign and seal or stamp the work.

Ethics Case Studies

“Ethical or Not”

Let's Examine Some Special Cases

Objectivity and Truthfulness— Professional Reference Policy

Objectivity and Truthfulness—Professional Reference Policy

Facts:

Engineer A is a principal for XYZ Consulting Engineering. Engineer A establishes an XYZ Consulting Engineering firm policy. Under the firm's policy, it would be improper for XYZ firm employees to provide or serve as a professional licensure reference for past XYZ Consulting Engineering employees.

Objectivity and Truthfulness—Professional Reference Policy

Question:

Was it ethical for Engineer A to establish an XYZ Consulting Engineering firm policy under which it would be improper for employees to serve as professional licensure references for past employees of XYZ Consulting Engineering?

Objectivity and Truthfulness—Professional Reference Policy

Discussion:

Over the years, the NSPE Board of Ethical Review has noted that it is not uncommon for ethical issues to arise when an employee leaves an employer. An employee's departure to another company can raise ethical concerns, as can situations in which an employee could move to a competing company. The Board has examined this issue on numerous occasions.

Objectivity and Truthfulness—Professional Reference Policy

Such a restrictive employment policy by an employer would constitute an obstacle to proper engineering licensure administration. Engineer A's action in establishing a broad policy to restrict all employees from sharing objective and truthful information, which interferes with employees' economic liberty and which materially harms the professional aspirations of present or former employees, cannot be aligned with the NSPE Code of Ethics.

Objectivity and Truthfulness—Professional Reference Policy

Conclusion:

It was unethical for Engineer A to establish an XYZ Consulting Engineering firm policy under which it would be improper for all employees to serve as professional licensure references for past employees of XYZ Consulting Engineering.

Conflict of Interest—Engineer Spouse as Sales Representative

Facts:

Engineer A is an employee for Firm X. Engineer A purchases office computer software from Company Y, which employs Engineer A's spouse as its sales representative, and Engineer A's spouse handles the transaction. After an internal complaint is filed within Firm X regarding nepotism/favoritism, Firm X determines that the prices from Company Y are within market pricing range and that the office computer software products meet Firm X's needs.

Conflict of Interest—Engineer Spouse as Sales Representative

Question(s):

- 1) Was it ethical for Engineer A to fail to disclose that Engineer A's spouse was a sales representative with Company Y?
- 2) Was it unethical for Engineer A to have entered into a contract with Company Y?

Conflict of Interest—Engineer Spouse as Sales Representative

Discussion:

Conflicts of interest raise important ethical issues for engineers. An engineer's professional judgment and expertise speak to the engineer's competence and integrity. It is vitally important for professional engineers to exercise their judgment and discretion in a manner that reflects objectivity and truthfulness and does not compromise the engineer's professional reliability. Conflicts of interest call into question the ability of the engineer to use his or her judgment without compromise.

Conflict of Interest—Engineer Spouse as Sales Representative

In view of these unambiguous facts, it is the BER's opinion that Engineer A violated the NSPE Code of Ethics both for failing to first disclose the conflict to Firm X officials and for entering into the software contract with Company Y. The fact that the prices from Company Y were within market pricing and that the office computer software products met Firm X's company needs are not relevant to the overarching ethical issues and the fact that Engineer A could personally benefit from the transaction because, as Company Y's sales representative, Engineer A's spouse handled the transaction.

Conflict of Interest—Engineer Spouse as Sales Representative

Conclusion:

- 1) It was unethical for Engineer A to fail to disclose that Engineer A's spouse was a sales representative with Company Y.
- 2) It was unethical for Engineer A to have entered into a contract with Company Y. Instead, Engineer A should have first disclosed the contract and his spousal relationship with an appropriate Firm X supervisor who could consider and approve the agreement, if appropriate.

Public Criticism—Parody

Public Criticism—Parody

Facts:

Engineer A is an engineering student within an engineering program at a major university. In an online student blog not directly associated with the university, Engineer A parodied one of his engineering professors, Engineer B. The parodied characterization could be viewed by some as humorous and not malicious. It could also be viewed by others as disparaging. The blog was viewed by many engineering students at the university as well as by engineering faculty.

Public Criticism—Parody

Question(s):

Was it ethical for Engineer A to satirize
one of his engineering professors,
Engineer B?

Public Criticism—Parody

Discussion:

Engineers have an ethical obligation to act in a manner that reflects positively upon the engineering profession and to treat professional colleagues with appropriate respect and dignity. Issues relating to the manner in which engineers conduct themselves in relation to other engineers have been subjects of NSPE Board of Ethical Review opinions in the past.

Public Criticism—Parody

Conclusion:

Engineer A's actions were inconsistent with the NSPE Code of Ethics. Engineer A should issue an apology to Engineer B in Engineer A's blog and personally.

Temporary Disability

Temporary Disability

Facts:

Engineer C is the owner of a single-engineer consulting firm. He was recently diagnosed with a medical condition that could affect his cognitive abilities. He is concerned that it could affect his ability to provide the professional level of standards of quality or standards of care he provides to his clients. The condition is treatable and Engineer C has begun treatment and expects to return to health in a few months. Engineer C is concerned about his ethical obligations.

Temporary Disability

Question(s):

Is he obligated to reveal his condition to his clients?

Should he refrain from accepting engineering work until he is fully recovered?

Temporary Disability

Discussion:

As licensed professionals, engineers have a duty to their clients and the public to perform at the standards of quality and standards of care for projects they are charged with designing. When an engineer is impaired by any condition, they might not be providing the same level of care than they normally would or they might not be giving their clients or the citizens the effort they expect to receive.

Temporary Disability

Engineer C has concerns concerning the quality of his own work and his ability to recognize a degradation in his services due to symptoms from his medical condition.

Engineer C, has a good reputation and long-standing loyal customers and hopes to continue to provide services in the years to come.

Temporary Disability

Conclusion

In this case, Engineer C, has concerns regarding his own abilities. There are no observations of lapses by others nor are there any efforts to deceive or conceal impaired services. In fact, Engineer C is confident of his continuing post-treatment competence to protect his clients. If possible, Engineer C, is encouraged to contract a trusted colleague to formally review his work for his own records. Engineer C could also hire a 3rd party reviewer to review his work for his own peace of mind.

Questions/Discussion

Thank you
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